

Formalisation and Informalisation of Land and Water Rights in Africa: An Introduction

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People's efforts to secure land and water rights in Africa follow many different paths, and the literature on African land tenure documents varied and shifting strategies. The centrality of land, water and other natural resources in peoples' livelihoods has also meant that such resources have enjoyed the keen attention of the state – whether colonial or independent, central or local. Rights to land and other natural resources not only determine control over economic sources of livelihood but, for states and governments, have also meant political control over African populations [Berry, 1993; Chanock, 1985; Mamdani, 1996; Merry, 1986; Moore, 1986]. Moreover, in many African communities, land is charged with historical and contextual signifiers, and the symbols by which people and government deal with land are ripe with meaning and values. Therefore, whenever people or institutions deal with land issues many agendas are affected at the same time, resulting in social and political friction and negotiation [Benjaminsen and Lund, 2001; Juul and Lund, 2002]. Access to land still remains a central preoccupation in most African societies, and while issues such as 'globalisation' and 'hegemonic discourses' demand much scholarly attention, this should not steer us away from the mundane everyday politics of institutionalisation of rights and exclusion. On the contrary, it becomes all the more important to investigate empirically how local-level competition, conflict and power reshape social institutions and move with a distinct dynamic that does not necessarily fit dominant discourses [Adger *et al.*, 2001].

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Legal pluralism is a concept that is central to ongoing tenure debates in Africa. This is a perspective on the legal order, which stems from late nineteenth and early twentieth-century research on tribal peoples in colonised societies. Here, the central question was how the social order was to be maintained in the absence of European law. Studies uncovered a host of complex indigenous forms of social control and procedures for mediation and adjudication. Early writings on this referred to a distinction between law and custom, law being the metropolitan written rules, while custom referred to the mostly unwritten pre-colonial rules. The dichotomous perception of law and custom ascribed civilising qualities and state power to law; and persistence, tradition and unequivocal popular recognition to custom [Merry, 1988: 875–9]. However, customary law did not consist of indigenous rules *per se* but was a product of colonisation, whereby the colonial power accepted certain versions of the recorded indigenous traditions as customary law pertaining to native matters [Berry, 1993; Bruce, 1986: 14–17; Chanock, 1985; Moore, 1986; Ranger, 1983; Le Roy et al., 1995: 109]. Indigenous rules were rationalised into customary law to fit the format of metropolitan state law. Hence, while the colonial administration inculcated the dichotomy of modern versus customary, the coexistence of a written formal general law, state-sanctioned selected customary law, and local indigenous rules often prevailed and mutually influenced each other.

In this volume, Frances Cleaver points out that the distinction between formal and informal may be seen as a false dichotomy. She suggests that 'local resource use practices and management arrangements are likely to be a complex blend of formal and informal, traditional and modern'. Rejecting the simplistic classification of institutions as either 'formal' or 'informal', 'modern' or 'traditional'/'customary', Cleaver instead proposes using the terms 'bureaucratic' and 'socially embedded'. Indeed, when suggesting it is rewarding to investigate formalisation and informalisation, it is less as absolutes than as competing social, economic and political processes with institutional ramifications. As for institutionalisation, in the introduction to her seminal book, *Law as Process*, Moore simply states, '[t]he making of rules and social and symbolic order is a human industry matched only by the manipulation, circumvention, remaking, replacing, and unmaking of rules and symbols in which people seem almost equally engaged' [Moore, 1978: 1]. Hence what we are witnessing is competing forms of institutionalisation: one backed by state law and the bureaucracy, encoded in official language and often exercised with the props of modern statehood; the other the institutionalisation of informal practices more or less grounded in ideas and values embedded in institutions seen as distinct from the colonial and post-colonial state. The competition often unfolds as one form of practice undercuts the other and offers ways of circumventing and replacing the other. The challenge is to identify these countervailing processes empirically.

As most of the essays in this collection show, such empirical investigations indicate that while reality obviously does not fall into neat dichotomies but is a blend of coexisting mutually influencing forms of power, discourse and rationality, people and institutions occasionally manoeuvre as if the world could be divided into compartments. Often the state will attempt formalisation, but there is, in fact, no neat dichotomy of formal/state on the one hand, and informal/non-state on the other. Reality is messier.

First, in most societies the state is a multi-institutional conglomeration rife with competition that may undo formalisation. Thus, while formalisation is often propelled by states, governments and reform, formal rules and regulations are also negotiated and undone by corruption, political networks and powerful alliances with, and indeed within, the state. Such informalisation tends to undermine and dissolve formal rights and serve the interests of those with privileged access to political power and strategic information. Second, formalisation processes are not the state's exclusive preserve; people may in fact create new practices and institutions to take care of what the state could or should have done. They may use the language of the state as well as its props in terms of contracts, deeds, attestations, etc. The irony of such informal formalisation [Mathieu, 2001] is that distinctions at one and the same time get increasingly blurred (who is exercising state authority?) and become increasingly important (who can produce formal proof of rights?). The central theme in the following analyses is how various processes of formalisation and informalisation of tenure rights interact and produce land tenure systems which are neither regulated by predictable rules and structures nor characterised by sheer anarchy.

FORMALISATION AND INFORMALISATION

States are drawn typically towards standardisation and one-size-fits-all solutions. In the area of land use and access to land and natural resources, states attempt to standardise and formalise local tenure systems and to make them 'legible' [Scott, 1998]. This is not only a modern or colonial phenomenon. In pre-colonial Africa, governments also tried to impose one mind-set on people and to organise societies according to their aspirations. A well-known example is the Macina Caliphate in Mali, which established a state based on *shari'a* in the mid-nineteenth century. The Caliphate gained political and administrative control both at central and local levels. It controlled the courts and the legal system and introduced the Dina Code in the inland delta of the Niger River to regulate access to the rich dry season pastures [Vedeld, 2001]. Today, the Dina Code is labelled 'customary', and is contrasted with Roman law introduced through the French colonial system.

The colonial state, whether British, French, Portuguese, Belgian or German, introduced legislation at an early stage to regulate the use of and

access to forests, pastures, wildlife and water in Africa. It ranged from expropriation and eviction of local people through various forms of nationalisation and exclusion, systems of permits and concessions, and the introduction of taxes, to the delegation of control to local chiefs and other authorities who acted as custodians of the amorphous entity known as the 'natives' [Berry, 1993; Bruce, 1986; Chanock, 1985; Mamdani, 1996; Mann and Roberts, 1991; McAusland, 2000; Merry, 1986; Moore, 1986]. In practical terms, a tremendous variation continued to characterise the various tenure systems, partly because the states' capacity to enforce their various laws had often been modest to say the least. It would seem that a common feature of African land tenure is the accidental and somewhat capricious local outcomes of state interventions whenever the state, in an uneven and haphazard way and with varying degrees of permanence, had asserted its power to rule.

Today, formalisation of land and water rights in Africa continues under various labels: decentralisation, *gestion de terroir*, community-based natural resources management, user pays principle, land or water reform, tenure reform and privatisation. Not all attempts at formalisation will lead necessarily to standardised packages lacking flexibility. In South Africa, the Draft Land Rights Bill, which was shelved by a new minister coming into office in mid-1999, was an ambitious and innovative attempt at allowing people to choose the tenure system that would be appropriate to their circumstances [Claassens, 2000, Cousins, 2002]. The proposed Bill was open both to vesting titles in individuals and groups. However, when the Bill was ready to be presented to parliament, it was decided by the government that the content was too controversial and politically sensitive [Turner and Ibsen, 2000]; it was also said to be too complex and expensive to implement.

The first contribution in this volume, dealing with processes of formalisation and informalisation, is by Frances Cleaver. She explores the socially embedded nature of institutions for natural resources management in the Usangu basin in Tanzania. This case study is used as a stepping-stone to challenge the idea that better institutions can be 'crafted' by resource users and policy-makers. Cleaver emphasises that such formalisation processes tend to bestow privileges to just a single aspect of people's identities. Hence, complex social and livelihood identities and multiple motivations are neglected. In large parts of Africa, there are people who farm, keep livestock, take on paid labour, and sell fruits, vegetables and handicrafts. They may be Muslims or Christians, but they may also identify with a local culture implying other moral pressures. People therefore have multiple identities which change over time. By overlooking this dynamic character of rural life and people's identities, formalisation processes may fuel rather than dampen conflicts through an emphasis of differences.

In contrast to institutional theory and its proposed crafting of single-purpose institutions, Cleaver proposes a concept of institutional bricolage. This implies that people may assemble and adapt norms, values and arrangements from various backgrounds and identities to suit a new purpose. Many institutions formed by the processes of bricolage are multi-purpose, and they may not therefore be labelled 'formal' or 'informal', as this distinction becomes blurred in the processes of borrowing and adaptation. Cleaver suggests rather that an understanding of the processes of bricolage may enable development efforts to recognise and build on such institutions and eventually help to deflate conflicts and improve the management of natural resources.

Bill Derman and Anne Hellum analyse an ongoing attempt at formalising water use and management in Zimbabwe through a new water reform. Internationally, there is a general push towards making rural water use more productive and efficient, which involves looking at water as an economic good including the introduction of the 'user pays principle'. However, as the authors demonstrate, the attempts at formalising this principle are undercut by local practices of sharing water freely. Changes meet resistance in the form of social values and local systems of control. The principle of no-cost access to water was, moreover, once bolstered by bureaucratic sanction, and it would seem particularly difficult to change peoples' behaviour through formalisation of certain new principles if it is to replace law as well as practices that enjoy some concordance.

Faustin Maganga's contribution is also based on fieldwork in Usangu in Tanzania. It describes how the introduction of new formal institutions altered litigation strategies. The new formal court system relies on an adversarial principle in contrast to a reconciliatory principle of the informal institutions. This situation has, contrary to the declared intentions of the legislators, led to uncertainty among many small-scale producers and opened up avenues for land-grabbing for the wealthy who may thrive in a 'winner-takes-all' system. The question remains whether poorer people will also seek the formal settings or whether two segregated institutional arenas will eventually emerge.

Rie Odgaard also investigates tenure systems in Tanzania. Her article describes how formalisation and informalisation need not necessarily clash. People attempt to institutionalise their land rights through formalisation of customary rights while at the same time attempting to legitimate formal or 'modern' rights according to custom. On the one hand, people with customary rights to land attempt to have such rights recorded by the village administration and the like. On the other hand, people who have been granted land administratively by the state but are strangers to the area attempt to solidify their claims by performing various customary rites like burials in the area. The official German colonial policy of interment of the dead provided the opportunity of establishing physical markers of property on the landscape in

the form of graves. However, in recent years, ever more elaborate graves appeared on the landscape as new, originally administratively provoked, customary signifiers of property. Hence, formal and informal practices intertwine, but to the exclusion of those – mainly pastoralists and women – for whom this particular custom as well as administrative allocation of land are beyond reach.

INFORMAL FORMALISATION

In most African countries, the only possible formal landowners are still the state and individuals with title deeds. However, to obtain a title is a cumbersome and costly process, beyond the reach of most rural poor. This has in many places with emerging land scarcity opened up a process of what one might call informal formalisation. Thus the informal recording of property transactions on paper, or other formalised ways of registration and transaction, seem to develop in parallel to the states' generally less than successful efforts at formally recording the land tenure situation [Mathieu, 2001]. Such informal practices are produced and invented through local institutional innovation using whatever means are available. They are composite practices combining, with more or less ambiguity, operations issuing from the repertoire of contract, documents and market exchange with operations stemming from customs and interpersonal relationships as they are dynamically lived in local society.

In his contribution, Philippe Lavigne-Delville draws on cases studied in various countries in francophone Africa (Ivory Coast, Burkina Faso, Benin, Rwanda and the Comoros) to discuss how farmers use various forms of signed documents to record land transactions. These written documents are found mainly in cases of definitive transactions involving the transfer of money. Only when sales are unusual and illegitimate are they accompanied by written contracts. These documents, which are attempts to formalise informal transactions, are diverse and vary from region to region. However, Lavigne-Delville has identified three common features:

- Contracts are incomplete and vague when it comes to the content of a transaction itself. A higher degree of precision may be perceived as unnecessary in some local contexts when people know each other, while in other cases a certain ambiguity may be in the interest of one of the parties.
- Witnesses generally sign contracts to strengthen transactions. In addition, an official validation of a transaction is sought by approaching an authority which could be customary or religious but is usually the locally-based administrative one, which is requested to sign and stamp documents.
- Registers are often kept locally by lineage chiefs or other leaders to keep track of land tenure changes in the area. These records may then be used in

the event of a dispute; on the other hand, such registers are often missing within local government offices.

In the following contribution, Paul Mathieu, Mahamadou Zongo and Lacinan Paré analyse new types of land transactions in the cotton zone of western Burkina Faso. These are new practices involving the transfer of money through selling or renting land – a process associated with emerging land scarcity, again leading to an increasing level of tension and tenure conflicts. The authors have identified five different ways people attempt to formalise land transactions in the study area. These are, with an increasing degree of formalisation:

- an exaggeration of the customary relationship between grantor and receiver of rights through gifts, sacrifices, and public displays of gratitude, etc. This can be interpreted as a way of concealing a transaction that goes against tradition;
- land investments, which are public displays of ownership, often used to validate a transaction. If the former owner does not question these investments, it implies a public acceptance that the new holder is the rightful owner;
- handwritten documents testifying the transactions are used in many cases. These documents are deliberately left incomplete and they usually avoid mentioning terms such as 'sell', 'buy' or 'allocate';
- in some cases, typewritten documents which are used; the format of these documents replicates an administrative style with the local police or administration being asked to sign and stamp them;
- ambitious documents aimed at formalising an informal transaction in what the authors call a record of palaver (*procès-verbal de palabre*). The seller, buyer, the customary authority and the local administration must all sign this document, which is required in order to continue the process towards obtaining a legal title.

The empirical setting of the following study, authored by Tor A. Benjaminsen and Espen Sjaastad, is just across the border from western Burkina Faso in the cotton zone in Mali. These two regions are similar in many respects, but with a national legal framework that differs to a certain extent. Both regions are economically relatively dynamic with agricultural development driven by a cash-crop cotton sector, leading to an influx of people and increasing pressure on agricultural land. Benjaminsen and Sjaastad describe how agricultural land around the two main towns in the Malian cotton zone is being converted rapidly from what is perceived as inalienable customary tenure to private property. The authors call this ongoing

competition for land rent a 'race', because of its speed. The actors involved compete both against time and each other. Farmers must sell their land before it is swallowed by town expansion through expropriation, which implies minimal compensation, while urban buyers must obtain titles before being expropriated; the state and the commune must expropriate before titles are obtained, and speculators must buy rapidly and obtain titles before land is expropriated. The prize in this race is not so much the land itself as its value, and the winner is not necessarily the one who acquires the title to the land but, instead, the individual who has managed to appropriate the land rent. The findings in this analysis support an adage: it is mostly the wealthy, the powerful and the informed who manage to appropriate the lion's share of the cake that rent formation represents.

Catherine André's study is based on two surveys of land transactions carried out in 1988 and 1993 in north-west Rwanda. Both surveys were undertaken of the same hill in a densely populated region situated close to commercial and administrative centres and with high population growth. Land is scarce in the area, and this situation has led to the development of an active land market. Contracts from land sales consulted in the two surveys also show that the frequency of sales increased from the 1950s to 1993. In the 1950s, money gradually replaced livestock in land transactions, and from the 1960s money was the means of payment in all the transactions recorded in the surveys. Even though this process may have led to increased tenure security for disadvantaged groups such as tenants and women (at least for those able to afford to purchase land), it also caused increased inequality. Of the total number of sales, 67 per cent were distress sales. This led to an increase in the proportion of the landless and a concentration of land in fewer hands.

CONCLUDING REMARKS

Formalisation lends itself easily to an evolutionary perspective. Indeed, the widespread concern with written documents, recording and registration of rights has an element of irreversibility to it. Moreover, most governments and donor agencies, their reforms and policies and a good number of theories on property either work to that end, or envisage an 'in-the-long-run-inevitable-development' [Platteau, 1996]. It is difficult to confirm or dismiss evolutionary perspectives outright; it very much depends on the time frame and institutional opportunities. None the less, the present crop of essays demonstrates that various developments occur at different paces. However, there is little indication of a linear development towards general state-sanctioned and guaranteed private property [Benjaminsen and Lund, 2001].

Increasing pressure on land through the combined effect of population growth and increasing commercialisation of land-based activities causes land

values to rise. As expressed in the Evolutionary Theory of Land Rights [Platteau, 1996], this process leads to individualisation of land tenure, which also implies more independence enjoyed by farmers regarding land management, including the possibility of transferring the land to other individuals. Customary constraints on the sales of so-called 'inalienable' land are gradually relaxed as land scarcity increases. The first land transactions would emerge and be supported by written documents to provide some sort of security for the buyer [Platteau, 2000].

So far, the four contributions on informal formalisation in this volume conform to this evolutionary perspective. However, when it comes to the tail-end of the theory – the titling process – reality is more complex and varied than envisaged. According to the theory, in the crucial and enabling stage of this endogenous individualisation process, the state will intervene and legally sanction the new tenure situation. However, the state's formal land titling process tends to be too bureaucratic and costly and, hence, beyond the means of most small-scale farmers. Instead, formalisation does indeed take place, not necessarily by the direct intervention of the state, but rather in terms of its expression. The state's forms of expression, such as language and format, appear increasingly important, but these are not necessarily accompanied by the state's mastery of its domain. It would seem that since formal titling is out of reach of most farmers, the second best option is informal formalisation, which provides some measure of certainty and security. Whether this will eventually lead to formal registration is, on the other hand, uncertain. Idioms of tradition are equally significant in the justification of rights to resources. Those who master current and characteristic modes of expression, who know when to observe tradition and institutionalise rights in informal settings and when to substantiate them through the formal institutions of the state, thrive in these conditions. Exclusion is the result, it appears, in many cases, but even here, making predictions may be hazardous in light of the perseverance of local politics and the logic of inclusion.

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